

ETABLIX

INTEGRATED SITE SERVICES

A trading name of JNN GLOBAL LTD · Company number 15405437

WORKING BRIEF

GE VERNOVA GRID SOLUTIONS SOURCING MNDA — REVIEW BEFORE SIGNING

internal working document — not for issue to a client or a buyer

Document	GE Vernova Grid Solutions Sourcing MNDA — review before signing
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Grid Solutions Sourcing MND, revised 14 March 2024. Eleven clauses, 2,195 words. Read in full from the file itself: no tracked changes, no comments, no schedules, nothing in the headers or footers but the title block.

This is a careful reading, not legal advice. Nobody here is a solicitor. One clause is a genuine problem, three are worth knowing about, and one is better than expected.

The one that matters: clause 5

"Each party shall retain ownership of all Confidential Information and intellectual property it had prior to commencement of the discussions ... *but GEV shall own exclusively all rights in ideas, inventions, works of authorship, strategies, plans, and data, created in or resulting from discussions between GEV and Supplier and/or made based on or using GEV's Confidential Information** ... and Supplier will execute assignments as necessary to achieve that result."*

This is an intellectual property assignment inside a confidentiality agreement, and it points at the only asset this company has.

Read what it actually captures. **"Strategies, plans, and data"** is the literal description of what ETABLIX produces — a site establishment specification, a demand model, a package structure, a rate build-up. And the trigger is not only the use of GE Vernova's confidential information. Look at the **"and/or"**: the first limb is anything *"created in or resulting from discussions between GEV and Supplier"*, full stop. Have a conversation about a site's requirement, go away, produce a method for it — and on the face of this clause, GE Vernova owns it exclusively, and there is an obligation to sign assignments making that formal.

It is not mutual, in a document titled Mutual. There is no reciprocal sentence giving the Supplier ownership of anything resulting from the same discussions. Clause 5 runs one way.

And clause 3 does not save it. Clause 3(d) carves independently developed material out of the *confidentiality* obligation where it was developed without reference to the Confidential Information and can be evidenced in writing. That carve-out does not appear in clause 5, and clause 5's first limb does not depend on Confidential Information at all. The two clauses do not line up, and the gap between them is where the method sits.

There is also no limitation of liability anywhere in the agreement, and under clause 10 the confidentiality obligations survive termination without any end date.

The redline to ask for

Minimal, targeted, and the kind of amendment large companies accept because it costs them nothing they actually need:

In clause 5, delete "created in or resulting from discussions between GEV and Supplier and/or" so that GEV's exclusive ownership attaches only to material "made based on or using GEV's Confidential Information", and add:

"For the avoidance of doubt, Supplier retains exclusive ownership of its own methodologies, templates, specifications, models, know-how and tools, including any development or refinement of them made without reference to GEV's Confidential Information."

That still gives GE Vernova everything a sourcing team genuinely needs: they own anything built on their own confidential information. It stops the clause swallowing a supplier's general method as a by-product of a

conversation.

Three worth knowing about

Clause 8 — the export control indemnity is uncapped. The Receiving Party indemnifies for *all* claims, damages, fines, penalties and legal costs arising from failure to comply with export control law. There is no cap and no proportionality. The exposure is limited to our own non-compliance, which is within our control, and this wording is standard across large engineering groups. Acceptable — but it is an unlimited liability on a one-director company and should be a known risk rather than a discovered one.

Clause 10 — perpetual confidentiality. Two years, auto-renewing in two-year periods on thirty days' notice, and the confidentiality obligations survive termination with no end date at all. Many NDAs cap this at three to five years. This one does not. Onerous but common, and on its own it would not be a reason to refuse.

Clause 7 — GE Vernova's Affiliates are third-party beneficiaries. Any GE Vernova affiliate that disclosed information can enforce the agreement directly. Normal in a group of that size.

One better than expected

Clause 7 expressly preserves the right to work with competitors. Neither party's right is restricted "*to undertake similar discussions or to enter into agreements or relationships with third parties covering subjects related to the matters covered herein.*" This was the clause most worth checking, and it is clean. Signing does not shut out Siemens Energy, Hitachi Energy, Balfour Beatty or anybody else.

Clause 11 is English law, which is right for a UK supplier even though the counterparty is GE Vernova International LLC.

What to do, and the timing argument

There is no commercial reason to sign this today. The purpose of an NDA is to let confidential information be exchanged while evaluating transactions. Grid Solutions has just confirmed that no purchase order can be placed without third-party quality accreditation, which is weeks and real money away. So signing now assigns intellectual property rights, perpetually, in exchange for access to transactions that cannot happen yet.

But refusing outright stalls a registration worth keeping warm. So the position is not refusal. It is: ask for the clause 5 amendment, say the signed agreement follows the same day it is agreed, and let them decide.

If they decline and hold the model agreement as non-negotiable, the choice is a judgement call rather than a rule:

- **Signing as drafted** costs nothing immediately and probably nothing ever, because the clause only bites where a discussion produces something worth owning. The risk is real but contingent.
- **Waiting until there is a transaction** costs nothing either, because there is no transaction available. Registration can sit at its current stage.

The second is better while there is nothing to discuss. It is not a refusal to sign; it is signing at the point the agreement is for something. Say so plainly and it reads as a supplier who read the document, which is the impression worth leaving with a sourcing team that has just asked for third-party accreditation.

One thing not to do: do not sign and then raise clause 5 later. An executed agreement is the agreement. The ask has to come before the signature.